

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK**

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JAMES CLAVIJO,

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity,
NEW YORK CITY POLICE OFFICER
DANIEL MEANEY (Shield 9510), NEW YORK
CITY POLICE OFFICER “JOHN DOE ‘Let’s
Wrap it Up... I’m Glad you Did,” NEW YORK
CITY POLICE OFFICER JOHN DOE
VEHICLE DRIVER and NEW YORK CITY
POLICE OFFICERS “JOHN DOES 1-10,”
POLICE DEPARTMENT SUPERVISING
OFFICERS “JOHN DOES 1-2”,

Defendants.
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: **INDEX NO.**
: **ECF CASE**
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: **JURY TRIAL DEMANDED**
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: **COMPLAINT**
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Plaintiff James Clavijo, by his attorneys, Stecklow & Thompson, complaining of the
defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. On or about August 16, 2012, Plaintiff James Clavijo attended a charitable fundraiser at the XL Lounge in the Out Hotel at 512 W. 42nd Street. Towards the end of the event, James Clavijo was assisting in the break down of the event by moving boxes from the hotel lounge to a vehicle parked on the street. Defendant PO MEANEY and Defendant NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER, were in a police vehicle and yelled towards Plaintiff that the vehicle (in which he was loading boxes) was parked illegally and had to be moved. Plaintiff replied that this was not his vehicle.

Defendant PO MEANEY and Defendant NEW YORK CITY POLIC OFFICER JOHN DOE

VEHICLE DRIVER then stated that the “f**king vehicle had to be moved.” Plaintiff again explained that the vehicle was not his and that he was just helping to load the vehicle, but that he would go search for the vehicle’s owner. Unable to locate the vehicle owner, Plaintiff returned to Defendant PO MEANEY and Defendant NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER, and informed them that he was unable to find the vehicle owner. Defendant PO MEANEY exited his vehicle and approached Plaintiff. As Plaintiff began to leave, Defendant PO MEANEY stated, “that’s right, get the f_ck out of here.” Plaintiff responded, “Whatever” as he walked away. Defendant PO MEANEY then stopped Plaintiff and demanded Plaintiff’s photo identification. Defendant PO MEANEY and Defendant NEW YORK CITY POLIC OFFICER JOHN DOE VEHICLE DRIVER then grabbed Plaintiff, tackled him to the ground, handcuffed him and arrested him.

2. Plaintiff was taken to multiple NYPD precincts, including the 10th precinct.

3. Eventually, Plaintiff was taken to Bellevue Hospital while in police custody to have his shoulder and other injuries examined by a doctor.

4. While still in police custody, plaintiff was removed from the hospital, and then held in jail without his consent until he could be arraigned and released on his own recognizance at approximately 10:00pm the following night, resulting in almost 24 hours in jail.

5. Plaintiff returned to court on approximately five (5) occasions before the charges were dismissed.

6. In sum, Plaintiff brings this claim because Defendant POLICE OFFICERS, sworn to protect and serve him, instead harassed, brutalized, arrested him, and falsely

charged him with offenses, despite the fact that, at no point, did he engage in any criminal or illegal conduct of any kind or type.

II. JURISDICTION

7. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

8. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(a)(3) and (4) and the aforementioned statutory and constitutional provisions.

9. Plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 USC. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gives rise to the federally based claims and causes of action.

III. VENUE

10. Venue is proper for the United States District Court for the Southern District of New York, pursuant to 28 U.S.C. § 1391(a), (b), and (c) and § 1402(b) because the claims arose in this district.

IV. JURY DEMAND

11. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

V. THE PARTIES

12. At all times relevant to this action, Plaintiff was an American citizen and a resident of the City of New York, County of New York and State of New York.

13. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

14. Defendant THE CITY OF NEW YORK maintains the New York City Police Department (“the NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

15. At all times, Defendant POLICE OFFICER DANIEL MEANEY was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Plaintiff asserts his claim against Defendant POLICE OFFICER DANIEL MEANEY in both his official and individual capacities.

16. At all times, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did’” Defendant was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Plaintiff asserts his claim against Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did’” in both his official and individual capacities. This officer was recorded on video making two statements, initially he instructed the witnesses, present at the arrest who were demanding the release of the plaintiff, “let’s wrap it up.” When one witness explained that this was an unlawful arrest and it was all captured on video, this officer stated, “I’m glad you did.” A photo of this individual officer is attached hereto as exhibit A.

17. At all times, NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER was a duly sworn police officer of the NYPD and was acting under the supervision of the NYPD and according to his official duties. Plaintiff asserts his claim against Defendant NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER in both his official and individual capacities. This officer was driving the police vehicle that DEFENDANT POLICE OFFICER MEANEY was a passenger. From this vehicle, officers first instructed plaintiff to move the vehicle. Both DEFENDANT POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER physically participated in the tackle and arrest of plaintiff.

18. Defendants “John Does 1-10” were those officers who were part of the group of members of service of the NYPD that assisted Defendant MEANEY in the detainment and arrest of Plaintiff.

19. The Defendant POLICE SUPERVISING OFFICERS “John Does 1-2” were those police supervisors who supervised Defendant MEANEY, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did” and “Defendants John Does 1-10,” including the supervising officer who authorized this arrest.

20. At all times relevant, Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did,” the Defendant POLICE OFFICERS “John Does 1-10”, NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER and the Defendant POLICE SUPERVISORS “John Does 1-2” (collectively, “the Defendant POLICE OFFICERS”), were duly sworn police officers of the NYPD and were acting under the supervision of the NYPD and

according to their official duties. Plaintiff asserts his claims against each officer in both their official and individual capacities.

21. Plaintiff will amend this complaint to name the Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did,’” the Defendant POLICE OFFICERS “John Does 1-10”, NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER and the Defendant POLICE SUPERVISORS “John Does 1-2”” as further information regarding their identities becomes available to Plaintiff.

22. At all times relevant to this action, each of the Defendant POLICE OFFICERS, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

23. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting within the scope of their employment by Defendant THE CITY OF NEW YORK.

VI. FACTS COMMON TO ALL CLAIMS

24. On or about August 16, 2012, at or around 11:30pm, Plaintiff was outside the Out Hotel at 524 West 42nd Street, in the state, city and county of New York, having just attended a charity fundraiser inside the Out Hotel at the XL Lounge.

25. Plaintiff was helping move boxes from the XL Lounge, where the fundraiser had occurred, and moving them into a vehicle that was parked on the street.

26. Defendant POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER were in a police vehicle nearby where the vehicle being loaded by plaintiff was parked.

27. Defendant POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER told the Plaintiff the vehicle was parked illegally and had to be moved immediately.

28. Plaintiff told Defendant POLICE OFFICER MEANEY that he did not own the vehicle.

29. Plaintiff told Defendant POLICE OFFICER MEANEY that he did not have the keys to the vehicle.

30. Defendant POLICE OFFICER MEANEY demanded that Plaintiff move this vehicle, stating it was parked on a Police Vehicles Only parking area.

31. Again, Plaintiff explained to Defendant POLICE OFFICER MEANEY that he did not own the vehicle or have its keys, so he could not move the vehicle.

32. After Plaintiff made an attempt to locate the owner of the vehicle, he returned to the vehicle of Defendant POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER and explained that he could not locate the vehicle owner.

33. Defendant POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER detained Plaintiff.

34. Defendant POLICE OFFICER MEANEY and NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER, along with Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did” and the DEFENDANT JOHN DOE OFFICERS, forced Plaintiff to the ground, handcuffed him and arrested him.

35. DEFENDANT NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did’” and the DEFENDANT JOHN DOE OFFICERS and DEFENDANT SUPERVISING OFFICERS had the time and access to intervene in this unlawful arrest but chose not to.

36. The excessive force used in tackling Plaintiff to the ground and moving the Plaintiff resulted in injuries to the plaintiff.

37. These injuries include bruising and swelling to the Plaintiff.

38. First, Plaintiff was removed to a NYPD precinct located at 42nd Street.

39. Secondly, Plaintiff was removed to the 10th Precinct of the NYPD for processing.

40. Thirdly, due to the injuries sustained during this arrest, while still in police custody, plaintiff was taken to the hospital for medical care.

41. Fourth, after receiving medical attention, Plaintiff was moved to central booking.

42. Plaintiff was detained at central booking until later that evening, when he was arraigned and released on his own recognizance.

43. Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER JOHN DOE VEHICLE DRIVER Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did’”, the Defendant POLICE OFFICERS “John Does 1-10” and the Defendant POLICE SUPERVISORS “John Does 1-2” caused Plaintiff to be held within their custody for a total of approximately twenty-four (24) hours.

44. Plaintiff was charged with one count of violating P.L. §240.20(3), Disorderly Conduct and one count of P.L. § 205.30, Resisting Arrest. (“Docket #2012NY064170”).

45. Defendant POLICE OFFICER MEANETY falsely swore out the criminal complaint against Plaintiff.

46. Plaintiff committed neither offense.

47. Nonetheless, Plaintiff was forced to appear before the Court on multiple occasions including, but not limited to, September 12, 2012, October 29, 2012, January 15, 2013 and March 6, 2013, to answer Defendant POLICE OFFICER MEANEY’S, and/or the other Defendant POLICE OFFICERS baseless charges stemming from their false arrest and physical assault of Plaintiff on or about August 16, 2012.

48. Upon information and belief, each of the Defendant POLICE OFFICERS present for the arrests of Plaintiff knew at the time they arrested Plaintiff that they lacked probable cause to arrest Plaintiff for any crime.

49. Upon information and belief, each of the Defendant POLICE OFFICERS present for the arrests of Plaintiff arrested Plaintiff, at least in part, to meet their prescribed quantitative productivity goals for arrests.

50. Upon information and belief, the Defendant POLICE OFFICERS’ arrests of Plaintiff were “contempt of cop” and/or “cover charge” arrests.

51. Upon information and belief, “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration are relatively easy for police to levy in the absence of actual probable cause because they can be levied solely upon the allegations of the arresting officer(s) without reference to physical evidence or witness observation of criminal acts.

52. Upon information and belief, to date, Defendant THE CITY OF NEW YORK has not implemented any curative training, oversight measures or policies designed or intended to curtail the improper use by New York City POLICE OFFICERS of so-called “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration.

53. During all of the foregoing wrongful acts committed against Plaintiff, not one of the Defendant POLICE OFFICERS intervened on Plaintiff’s behalf so as to prevent the violation of Plaintiff’s constitutional rights, despite having realistic opportunities to do so.

54. As a result of the foregoing, Plaintiff sustained, *inter alia*, physical pain, mental injuries, emotional distress, embarrassment, humiliation and deprivation of his constitutional rights.

55. As a result of the foregoing, Plaintiff demands judgment against Defendants in an amount of money to be determined at trial.

VII. CLAIMS FOR RELIEF

CLAIM 1. DEPRIVATION OF PLAINTIFF’S FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

56. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. All of the aforementioned acts of Defendant THE CITY OF NEW YORK, and the Defendant POLICE OFFICERS and their agents, servants and employees (“Defendants”), were carried out under the color of state law.

58. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from excessive force;
- e. To freedom from retaliatory prosecution;
- f. To freedom from abuse of process; and
- g. To freedom of speech and expression.

59. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

60. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, under color of law, with all of the actual and/or apparent authority attendant thereto.

61. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant THE CITY OF NEW YORK and the NYPD, all under the supervision of ranking officers of said department.

62. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish,

anxiety, fear, humiliation, loss of freedom, loss of property, damage to property, out-of-pocket expenses and damage to his reputation and standing within his community.

63. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

64. Defendants deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

65. Defendant THE CITY OF NEW YORK and the NYPD are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978).

66. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer damages, injuries, and harm.

67. As a result, Plaintiff seeks compensation in an amount to be determined at trial.

CLAIM 2. VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS
UNDER 42 U.S.C. §1983
ARISING FROM WARRANTLESS ARREST WITHOUT PROBABLE CAUSE

68. One or more of the Defendant POLICE OFFICERS, including but not limited to MEANEY and the other DEFENANT OFFICERS handcuffed and arrested Plaintiff.

69. This arrest was made in the absence of a warrant for the arrest.

70. This arrest was made in the absence of probable cause for this arrest.

71. The Defendant POLICE OFFICERS arrested Plaintiff without having exigent circumstances for doing so.

72. There was no other authority for the arrest of the Plaintiff.

73. The Plaintiff was conscious of this arrest.

74. The Plaintiff did not consent to this arrest.

75. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

CLAIM 3. VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS
UNDER 42 U.S.C. §1983
ARISING FROM DEFENDANTS' MALICIOUS PROSECUTION OF PLAINTIFF

76. One or more of the Defendant POLICE OFFICERS, including but not limited to MEANEY and the other DEFENDANT OFFICERS caused criminal process to be brought against Plaintiff.

77. These prosecutions ended in Plaintiff's favor.

78. There was no probable cause to initiate these prosecutions.

79. The Defendant POLICE OFFICERS acted maliciously in initiating these proceedings.

80. Plaintiff was forced to appear before the court on multiple occasions to answer the criminal proceedings that the Defendant POLICE maliciously initiated against him.

81. Plaintiff was repeatedly deprived of his liberty as a result.

82. As a result, Plaintiff seeks compensation in an amount to be determined at trial.

CLAIM 4. VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT RIGHTS
UNDER 42 U.S.C. §1983
ARISING FROM DEFENDANTS' USE OF EXCESSIVE FORCE

83. The Defendant POLICE OFFICERS knocked Plaintiff to the ground.

84. The Defendant POLICE OFFICERS placed Plaintiff in handcuffs, despite not having probable cause for his arrest.

85. The handcuffs were too tight, and were left on for unreasonable periods of time.

86. At no point during the incidents described herein did the circumstances necessitate or support the above applications of force utilized by the Defendant POLICE OFFICERS against Plaintiff.

87. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

CLAIM 5. VIOLATION OF PLAINTIFF’S CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. §1983
ARISING FROM DEFENDANTS’ FAILURE TO INTERVENE

88. The individual Defendant POLICE OFFICERS including, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did”, “John Does 1-10” and SUPERVISING OFFICERS JOHN DOE 1-2 all had an affirmative duty to intervene on Plaintiff’s behalf to prevent the violation of his constitutional rights by the other Defendant POLICE OFFICERS.

89. The individual Defendant POLICE OFFICERS failed to intervene on Plaintiff’s behalf despite having had realistic opportunities to do so.

90. The individual Defendant POLICE OFFICERS failed to intervene on Plaintiff’s behalf despite having substantially contributed to the circumstances within which Plaintiff’s rights were violated by their affirmative conduct.

91. As a result of the aforementioned conduct of the Defendant POLICE OFFICERS, Plaintiff's constitutional rights were violated.

92. As a result, Plaintiff was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

CLAIM 6. MUNICIPAL LIABILITY UNDER *MONELL*
UNDER 42 U.S.C. §1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICIES RELATING TO
ARRESTS QUOTAS

93. Defendant THE CITY OF NEW YORK and the NYPD established official policies directing and promoting unconstitutional practices by NYPD officers, and have tolerated, condoned and permitted widespread unconstitutional practices by NYPD officers.

94. Defendant THE CITY OF NEW YORK indemnifies and shields NYPD officers who repeatedly and habitually violate constitutional rights, such as the Defendant POLICE OFFICERS "John Does 1-10" and SUPERVISING OFFICERS JOHN DOES 1-2, and Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'".

95. Defendant THE CITY OF NEW YORK fails to discipline police misconduct, thereby insuring that such misconduct continues.

96. Defendant THE CITY OF NEW YORK implements quotas for individual officers' arrests, thus incentivizing or compelling unconstitutional misconduct by individual officers.

97. Defendant THE CITY OF NEW YORK tolerates and condones police perjury.

98. Defendant THE CITY OF NEW YORK tolerates and condones the unlawful practice of cover charge arrests for contempt of cop.

99. These policies and practices caused the unlawful conduct of the Defendant POLICE OFFICERS.

THE NYPD COMPELS ITS OFFICERS TO MEET
UNLAWFUL ARREST QUOTAS,
COMPELLING THOUSANDS OF BASELESS AND UNLAWFUL ARRESTS

100. The NYPD places emphasis on numbers-driven street-level enforcement of minor violations.¹

101. Indeed, the use of an explicit quota system has been documented at the several precincts.²

102. This quota system is enforced by the very top levels of the NYPD through the Department's Compstat system.

103. In a full-page ad on page 15 of the May 7, 2012 edition of the New York Daily News, The Patrolmen's Benevolent Association made clear that the quota pressure comes from the top. Referring to these quotas, the ad is headlined: "Don't Blame the Cop, Blame NYPD Management."

104. The NYPD uses Compstat to track such enforcement actions statistically.

¹ Defendants' [City of New York et al.] Local Civil Rule 56.1 Statement of Undisputed Facts, Floyd et al v. NYC et al., 08 CIV. 01034 (SAS) [SDNY], docket number 144, filed 2/24/2011, paragraphs 116-131.

² Fanelli, James, "Cops At Brooklyn's Crime-Ridden 77th Precinct Told To Meet Quotas For Moving Violations, Memos Say," New York Daily News, November 8, 2010. Article incorporated by reference herein and available online at http://articles.nydailynews.com/2010-11-08/local/27080554_1_memos-quotas-seat-belt.

105. The NYPD holds weekly crime strategy meetings, “Compstat Meetings,” at which such reports are discussed.³

106. Compstat Meetings are attended by all commanders of Precincts, Police Service Areas, Transit Districts and other operational unit commanders within a given Patrol Borough, including the commanding officers and /or supervisors of precinct-based and specialized investigative units.⁴

107. Also in attendance are representatives from the District Attorneys’ Offices as well as Transit and Housing Bureau Commanders whose jurisdictions lie within the patrol borough, Crime Strategy Coordinators from other patrol boroughs, and ranking officers from a variety of support and ancillary units (such as the Legal Bureau which do not perform direct enforcement functions.).⁵

108. The purpose of these Compstat Meetings is for the commanders to direct and modify street-level law enforcement policy based on Compstat statistics.⁶

109. At these weekly Compstat Meetings, commanders either ratify that the statistics show that the NYPD’s street-level activities are correctly implementing the NYPD’s stated policies, or street-level deployments are modified to bring these activities in line with such policies.⁷

³ Id.
⁴ Id.
⁵ Id.
⁶ Id.
⁷ Id.

110. In this way, the highest-level command of the NYPD exercises granular control over summonses and arrests for minor violations and quality of life offenses, as well as for stop, question and frisk activity.⁸

111. What street-level police officers do is a direct result of these command-level policies.

112. As the New York Daily News reported, NYPD supervisors give explicit instructions to street-level enforcement personnel that quantity, not quality, matters – promulgating a policy that comes from the very top of the NYPD hierarchy.⁹

113. Individual officers have stepped forward to denounce the NYPD's use of quotas, which are illegal.¹⁰

114. Officers that refuse to meet illegal quotas are subject to adverse employment actions and other retribution from their superiors.¹¹

115. The NYPD officially denies that it maintains and enforces quotas.

⁸ Id.

⁹ Parascandola, Rocco, "Cops On Tape Pushing Arrest Quotas: NYPD Lt. Janice Williams captured on tape pushing for more busts, but brass says there's no quotas," The New York Daily News, March 3, 2011.

¹⁰ Parascandola, Rocco, "Cops On Tape Pushing Arrest Quotas: NYPD Lt. Janice Williams captured on tape pushing for more busts, but brass says there's no quotas," The New York Daily News, March 3, 2011; Parascandola, Rocco, "An ex-Bronx cop Ex-Cop Sues City, Says Quotas Led to Firing: Ex-Bronx cop Vanessa Hicks suing city, says quotas led to axing,"

The New York Daily News, May 2, 2011; Parascandola, Rocco, "79th Precinct cops claim retribution: Nine officers say poor evaluations are payback from commander," The New York Daily News, April 10, 2012.

¹¹ See id.

116. However, the existence of this unconstitutional arrest quota custom and/or policy has been shown by the posting of lists of quantitative targets for various forms of summonses at the 77th Precinct in Brooklyn.¹²

117. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the tape recordings acquired by WABC-TV/DT, in which a 41st Precinct sergeant explains that each of his officers is held to a twenty summons per month, and one arrest per month, enforcement quota.¹³

118. The existence of the aforesaid unconstitutional arrest quota custom and policy may further be inferred from the tape recordings acquired by the Village Voice, including, among other admissions, an 81st Precinct sergeant telling his officers to make quota-driven arrests as directed by their superiors even if they must void the arrests at the end of their shifts.¹⁴

119. The existence of the aforesaid unconstitutional arrest quota custom and/or policy and pressures to create appropriate statistical results may further be inferred by at least one NYPD precinct having rampant abuse of crime reporting by its officers. In July of 2015,

¹² Fanelli, James, "Cops At Brooklyn's Crime-Ridden 77th Precinct Told To Meet Quotas For Moving Violations, Memos Say," New York Daily News, November 8, 2010. Article incorporated by reference herein and available online at http://articles.nydailynews.com/2010-11-08/local/27080554_1_memos-quotas-seat-belt.

¹³ Hoffer, Jim, "NYPD Officer Claims Pressure To Make Arrests," WABC News, March 3, 2010. Article incorporated by reference herein and available online at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7305356>.

¹⁴ Rayson, Graham, "The NYPD Tapes, Part 2: Bed-Stuy Street Cops Ordered: Turn This Place Into A Ghost Town." Village Voice, May 11, 2010. Article incorporated by reference herein and available online at <http://www.villagevoice.com/2010-05-11/news/nypd-tapes-part-2-bed-stuy/>.

administrative charges were brought against multiple officers of one NYPD precinct for under reporting crime statistics.¹⁵

THESE UNCONSTITUTIONAL POLICES AND PRACTICES RESULTED IN
PLAINTIFF'S INJURY

120. Upon information and belief, The Defendant POLICE OFFICERS were implementing the foregoing unlawful “productivity goals” or arrests quotas custom, practice, and/or policy when they arrested and detained Plaintiff.

121. Upon information and belief, the NYPD’s practice of tolerating and condoning widespread perjury by its officers, including but not limited to the Defendant POLICE OFFICERS directly and proximately resulted in Plaintiff being subjected to unlawful arrests and excessive force by the Defendant POLICE OFFICERS.

122. Upon information and belief, the NYPD’s practice of tolerating and condoning police misconduct by its officers, including but not limited to the Defendant POLICE OFFICERS, directly and proximately resulted in Plaintiff being subjected to unlawful arrests and excessive force by the Defendant POLICE OFFICERS.

123. Upon information and belief, the NYPD’s practice of unlawfully making arrest in order to meet illegal “arrest quotas” directly and proximately resulted in Plaintiff

¹⁵ Weiss, Murray & Small, Eddie, “19 Officers in NYPD’s 40th Pct Underreporting Crime Stats,” DNA Info, July 17, 2015. Article incorporated by reference and available online at <http://www.dnainfo.com/new-york/20150717/mott-haven/19-officers-nypds-40th-pct-face-charges-for-underreporting-crime-stats>

being subjected to unlawful arrests and excessive force by the Defendant POLICE OFFICERS.

124. As a result of the above constitutionally impermissible conduct, Plaintiff suffered violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and physical injury.

125. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

CLAIM 7. MUNICIPAL LIABILITY UNDER *MONELL* UNDER 42 U.S.C. §1983 ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICIES RELATING TO THE NYPD'S CUSTOM, PRACTICE, AND POLICY OF UNLAWFULLY CHARGING INNOCENT PEOPLE WITH "COVER" CHARGES TO PUNISH "CONTEMPT OF COP"

126. Upon information and belief, police officers in the City of New York make arrests in the absence of the commission of any crime by the person arrested, motivated by a desire to punish the arrestee for the arrestee's perceived failure to display the degree of deference or subservience demanded by the arresting officers.

127. Such arrests are frequently referred to as "**contempt of cop**" arrests.

128. In order to conceal the illegality of these arrests, the victim of the unlawful arrest is charged with a "**cover charge**," usually a low-level crime which does not require a complainant, and whose elements can be established, for the purposes of a criminal complaint, by the officer's own perjured affidavit or testimony.

129. NYPD police officers have a pattern and practice of charging one or more of a trinity of offenses as their favored cover charges: disorderly conduct, resisting arrest, and obstruction of governmental administration.

130. However, other charges that require no complainant, such as quality of life infractions like open container or excessive noise violations, are also used to cover false arrests.

131. The New York Times published a special report on the incidence of police brutality as a response to perceived “contempt of cop” by residents of the City of New York, and documented officers’ use of cover charges in such cases.¹⁶

132. The NYPD has never undertaken any internal study of contempt of cop arrests or cover charges, and statistics on these practices are not available. However, there is extensive evidence of a widespread practice of false cover charges.

133. In a case profiled by the CCRB, that board substantiated a quintessential contempt-of-cop/cover charge false arrest: “The board also determined that the second officer improperly drew his gun, failed to provide his name as required by the department’s Patrol Guide, and lacked probable cause to issue the disorderly conduct summons, a summons motivated by the man’s challenging the officers’ actions.”¹⁷

¹⁶ Sontag, Deborah, and Barry, Dan, “CHALLENGE TO AUTHORITY: A special report: Disrespect as Catalyst for Brutality,” New York Times, November 19, 1997. Article incorporated by reference herein and available online at <http://www.nytimes.com/1997/11/19/nyregion/challenge-to-authority-a-special-report-disrespect-as-catalyst-for-brutality.html?pagewanted=all>.

¹⁷ CCRB Case Profiles, available at <http://www.nyc.gov/html/ccrb/html/profiles.html> (last visited May 15, 2012).

134. In another such case, the CCRB found that a detective struck a man in the back of the head with a gun when the man questioned the detective. The man was charged with disorderly conduct, which charges were dismissed.¹⁸

135. In another such case, the CCRB found that without legal justification an officer arrested a man who accidentally bumped into him on the street. The CCRB found that the officer issued the man a summons charging him with disorderly conduct, and the officer told him, “You’re lucky I didn’t beat the shit out of you.” A court dismissed the disorderly conduct summons.¹⁹

136. Defendant City of New York and the New York Police Department continue to resist calls for disclosure statistics concerning minor crimes such as the typical “cover charge” crimes.²⁰

137. The NYPD’s failure to respond to this well documented problem, and its obstruction of efforts of outside parties to document and address this issue, amount to ratification of the pattern and practice of contempt of cop arrests and excessive force, justified by false cover charges, by the NYPD’s agents, employees, and officers.

138. In 2015, the New York Police Department’s Risk Management Bureau began to track data from several city agencies on lawsuits, misconduct complaints and internal probes. This data is to be used to find patterns that would assist in (1) rooting out bad

¹⁸ Id.

¹⁹ Id.

²⁰ Rivera, Ray and Baker, Al, “Data Elusive on Low-Level Crime in New York City,” The New York Times, Nov. 1, 2010. Article incorporated by reference herein and available online at <http://www.nytimes.com/2010/11/02/nyregion/02secrecy.html?pagewanted=all>.

officers, (2) amending or changing NYPD policy, and (3) issues that need to be addressed via additional training²¹.

THESE UNCONSTITUTIONAL POLICES AND PRACTICES RESULTED IN
PLAINTIFF'S INJURY

139. Upon information and belief, Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'" and the Defendant POLICE OFFICERS "John Does 1-10". were acting pursuant to the custom, practice, and/or policy of subjecting individuals to "contempt of cop" arrests or arrests quotas custom, practice, and/or policy each time they arrested and detained Plaintiff.

140. Upon information and belief, the NYPD's practice of tolerating and condoning police misconduct by its officers, including but not limited to Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'", Defendant SUPERIVSING OFFICERS "JOHN DOE 1 & 2" and the Defendant POLICE OFFICERS "John Does 1-10", directly and proximately resulted in Plaintiff being subjected to unlawful arrests and excessive force by Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'" and the Defendant POLICE OFFICERS "John Does 1-10".

²¹ Long, Colleen, "NYPD tracking officer data on lawsuits, complaints: In an attempt to root out problem officers and monitor patterns of potential misbehavior, NYPD is creating a database, Associated Press. Article incorporated by reference herein and available online at: <http://www.policeone.com/officer-misconduct-internal-affairs/articles/8656321-NYPD-tracking-officer-data-on-lawsuits-complaints/>

141. Upon information and belief, the NYPD's practice of unlawfully charging innocent people with 'cover' charges to punish "contempt of cop" directly and proximately resulted in Plaintiff being subjected to unlawful arrests and excessive force Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'" and the Defendant POLICE OFFICERS "John Does 1-10".

142. As a result of the above constitutionally impermissible conduct, Plaintiff suffered violations of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and physical injury.

143. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

CLAIM 8. PUNITIVE DAMAGES AGAINST THE DEFENDANT POLICE OFFICERS

144. The actions of Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did,'" Defendant SUPERVISING OFFICERS "JOHN DOE 1 & 2" and the Defendant POLICE OFFICERS "John Does 1-10". constituted intentional violations of federal and state law.

145. The actions of Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER "JOHN DOE 'Let's Wrap it Up... I'm Glad you Did'" and the Defendant POLICE OFFICERS "John Does 1-10" were motivated by evil motive or intent, or involved involves reckless or callous indifference to the constitutionally protected rights of Plaintiff.

146. As a result, Plaintiff is entitled to an award of punitive damages against Defendant POLICE OFFICER MEANEY, Defendant NEW YORK CITY POLICE OFFICER “JOHN DOE ‘Let’s Wrap it Up... I’m Glad you Did’” and the Defendant POLICE OFFICERS “John Does 1-10”. in an amount to be determined at trial.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- [a] Invoke pendent party and pendent claim jurisdiction.
- [b] Award appropriate compensatory and punitive damages.
- [c] Empanel a jury.
- [d] Award attorney’s fees and costs.
- [e] Award such other and further relief as the Court deems to be in the interest of justice.

DATED: New York, New York
August 1, 2015

Respectfully submitted,

//s//
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